

25STCV25836 25STCV25836

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Case Number: 25STCV25836 Hearing Date: September 24, 2026 Dept: 413

TENTATIVE

RULING

HEARING DATE: September

24, 2026

CASE NUMBER: 25STCV25836

CASE NAME: William L. Gonzalez vs. Jaguar Land Rover

North America, LLC, et al.

MOVING PARTY: Defendants Jaguar

Land Rover North America, LLC ("JLRNA") and Galpin Jaguar Lincoln Mercury, Inc.

("Galpin")

OPPOSING PARTY: Plaintiff William L. Gonzalez

PROCEEDING: DEMURRER TO SECOND

AMENDED COMPLAINT

OPPOSITION: 10 September 2026

REPLY: 17

September 2026

RULING SUMMARY: defendants'

demurrer to the fifth cause of action is sustained without leave to amend. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause Re:

Filing of Answer for the same date and time.

Background

On September 3, 2025, William L. Gonzalez (“Plaintiff”) filed a Complaint against Jaguar Land Rover North America, LLC (“JLRNA”) and Galpin Jaguar Lincoln Mercury, Inc. (“Galpin”) (collectively “Defendants”) and Does 1 to 10.

On December 11, 2025, Plaintiff filed a First Amended Complaint (“FAC”) alleging causes of action for (1) Violation of Civ. Code § 1793.2, subd. (d); (2) Violation of Civ. Code § 1793.2, subd. (b); (3) Violation of Civ. Code § 1793.2, subd. (a)(3); (4) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794, 1795.5); (5) Negligent Repair, and (6) Fraudulent Inducement.

By order on March 26, 2026, the Court sustained Defendants’ demurrer to the fifth cause of action with leave to amend and overruled as to the sixth cause of action.

On April 15, 2026, Plaintiff filed a Second Amended Complaint (“SAC”) alleging the same six causes of action as the FAC.

Defendants demur to the fifth cause of action in the SAC. Plaintiff opposes the Motion.

LEGAL STANDARDS

A. Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) “For the purpose of testing the sufficiency of the cause of action, the

demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

B. Leave to Amend

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

Demurrer[1]

I. Discussion

Defendants demur to the fifth cause of action for negligent repair pleaded against Galpin, on the grounds that the claim is barred by the economic loss rule and the pleading is deficient.

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“The elements of a cause of action for negligence are well established. They are (a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917 [internal quotations omitted].) The existence of a legal duty is a question of law for the court to decide. (Adams v. City of Fremont (1998) 68 Cal.App.4th 243, 265.) “However, the elements of breach of that duty and causation are ordinarily questions of fact for the jury’s determination.” (Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 278.) “One who undertakes repairs has a duty arising in tort to do them without negligence.” (Southwest Forest Industries, Inc. v. Westinghouse Elec. Corp. (9th Cir. 1970) 422 F.2d 1013, 1020.)

Plaintiff alleges the following: On October 23, 2023, Plaintiff entered into a warranty contract with JLRNA for a 2023 Land Rover Range Rover Sport (the “Vehicle”) that JLRNA manufactured and/or

distributed. (SAC ¶ 7.) The contract pertained to bumper-bumper, powertrain, and emission warranties. (SAC ¶ 8.) The Vehicle was purchased from Defendant Galpin, an authorized retail dealership. (SAC ¶¶ 9-10.) Plaintiff was not advised prior to purchase of the Vehicle's 3.0-liter engine's defects. (SAC ¶ 11.) The Vehicle experiences defects and non-conformities to warranty including, but not limited to, "hesitation, overheating, a malfunction indicator light, the infotainment screen goes black, jerking, difficulty connecting or remaining connected to smart devices, and the automatic side steps deploy and retract improperly." (SAC ¶ 14.) These defects have substantially impaired the use, value, and/or safety of the Vehicle and have rendered the Vehicle worthless. (SAC ¶¶ 19-20.) "Defendant JLRNA and its representatives in this state have been unable to service or repair the Vehicle to conform to the applicable express warranties after a reasonable number of opportunities." (SAC ¶ 34.)

Plaintiff also alleges that the causes of action in the SAC "arise out of the warranty obligations of JLRNA in connection with a motor vehicle for which JLRNA issued a written warranty" (SAC ¶ 17), and that ". . . Defendant JLRNA and its representative failed to commence the service or repairs within a reasonable time and failed to service or repair the Subject Vehicle so as to conform to the applicable warranties within 30 days . . ." ((SAC ¶ 40).

In the fifth cause of action, specifically, Plaintiff alleges that: "Plaintiff delivered the Subject Vehicle to Defendant GALPIN for substantial repair on at least one occasion;" that "Defendant GALPIN owed a duty to Plaintiff to use ordinary care and skill in storage, preparation and repair of the Subject Vehicle in accordance with industry standards;" that "Defendant GALPIN breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards;" and that "Defendant GALPIN's negligent breach of its duties owed to Plaintiff was a proximate cause of Plaintiff's damages." (SAC ¶¶ 53-56.)

The Court notes that these allegations are identical to those alleged in the FAC generally and as to the fifth cause of action. (FAC ¶¶ 7-11, 14, 19-20, 52-55.) The only difference in the relevant sections is the addition of paragraph 26: "Plaintiff is entitled to recover any 'cover' damages under Civil Code, section 1794, et seq."

Plaintiff argues that the SAC meets the burden for alleging negligent repair. (Opp., at p. 3.) He asserts that Galpin's

argument that the SAC completely disregards the March 26, 2026 Order sustaining the demurrer to the FAC is "mistaken." (Opp., at p. 3.) Plaintiff points to paragraphs 53 to 56 in support of this contention. (Id.) But, as the Court noted above, these paragraphs and allegations are identical to those alleged in the FAC's fifth cause of action. (SAC ¶¶ 53-56; FAC ¶¶ 52-55.) The Court sustained Defendants' demurrer to the FAC's fifth cause of action in its March 26, 2026 Order, and found:

"The Court agrees that the fifth cause' [sic] of action is conclusory and devoid of facts explaining how the Subject Vehicle was damaged and why the repair was negligent. The FAC fails to allege facts as to what damages Plaintiff sustained due to Defendant Galpin's failure to 'properly store, prepare and repair the Subject Vehicle' and its storage, preparation, and repair work deviated from 'industry standards.' (FAC ¶¶ 53, 54.)"

As Plaintiff copy and pasted the same allegations from the FAC, which this Court already found insufficient to survive a demurrer into the SAC, the Court's prior ruling regarding the insufficiency of the pleading remains the same.

The Court sustains the demurrer to the fifth cause of action. Because Plaintiff failed to allege facts to address the problems identified in the Court's prior ruling sustaining the demurrer to the FAC with leave to amend, despite having had to opportunity to do so, the Court does not grant further leave to amend in this ruling.[2]

cc

Conclusion

defendants' demurrer to the fifth cause of action is sustained without leave to amend. Defendants shall file an Answer to the SAC within 10 days of this Ruling. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause Re: Filing of Answer for the same date and time.

Date: September 24, 2026 _____

William

E. Weinberger

Judge,
Los Angeles Superior Court

[1] Pursuant
to Code of Civil Procedure section 430.41, the meet and confer requirement has
been met. (Roth
Decl., ¶¶ 2, 3, Ex. A.)

[2]
Because the demurrer was sustained on
independent pleading basis, the Court did not address the economic loss rule
argument. The Court notes, however, that in its previous March 26, 2026 Order,
the Court found: "Therefore,
the fifth cause of action is not barred by the economic loss rule because
Defendant [Galpin] owes an independent statutory duty to conduct repairs 'in a
good and workmanlike manner.' (Civ. Code, § 1796.5.) 'A duty may arise through
statute, contract, or the relationship of the parties.' (Lichtman v. Siemens
Industry Inc. (2017) 16 Cal.App.5th 914, 920 [internal quotations and
citations omitted].)" Therefore, the argument that the fifth cause of action is
barred by the economic loss rule is without merit."∴∴